

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2018-8143

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING EMMET
FRANKLIN BELLVILLE III, LPC, LICENSE NO. LPC-0004358,

Respondent.

The State Board of Licensed Professional Counselor Examiners (“Board”), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the provisions of section 12-43-101, et al., of the Colorado Revised Statutes (“Act”) and the Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent Emmet Franklin Bellville III (“Respondent”) was served with a Notice of Charges on March 5, 2019.
2. On or about April 16, 2019, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on May 8, 2019.
3. The ALJ’s Entry of Default was mailed to Respondent by first class mail to the address of record on May 8, 2019.
4. The ALJ’s Initial Decision Upon Default was rendered on July 1, 2019 and received by the Board on July 10, 2019. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board’s prosecuting attorney on August 6, 2019, via first-class mail and electronic mail.
6. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through twenty of the attached Initial Decision, in their entirety.

- b. Adopts the Conclusions of Law, as set forth in paragraphs one through six of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction of SUSPENSION, as set forth in the final paragraph of the attached Initial Decision.

IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby SUSPENDED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-43-217, C.R.S.

SO ORDERED this 27th day of September 2019.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	 COURT USE ONLY 	
State Board of Licensed Professional Counselor Examiners Petitioner, VS. Emmet F Bellville III Respondent.		
	NOTICE OF ORDER ISSUANCE	

The attached Initial Decision Upon Default was issued July 01, 2019 in the above referenced case.

Dated: July 10, 2019

/s/ Adriana Chavez

Adriana Chavez
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. EMMET FRANKLIN BELLVILLE III, License No. LPC 4358, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners (the “Board” or “Petitioner”) involving the license to practice as a licensed professional counselor (“LPC”) of Emmet Franklin Bellville III (“Respondent”). The Board was represented by Senior Assistant Attorney General Jodanna L. Haskins. Respondent did not appear in this proceeding. Based upon Respondent’s failure to file an Answer to the Board’s Notice of Charges, an Entry of Default was issued on May 8, 2019. Respondent then had ten days to show good cause why the Entry of Default should be set aside. Section 24-4-105(2)(b), C.R.S. A motion to set aside the Entry of Default was not filed and this matter became ready for the issuance of an Initial Decision Upon Default on May 21, 2019.

FINDINGS OF FACT

Procedural Facts

1. The last address furnished by Respondent to the Board is 417 Kiowa Street, Unit 207, Colorado Springs, Colorado 80903-3455.
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held and the matters of fact and law asserted was mailed by first class mail to Respondent at the above address on March 5, 2019.
3. The Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Charges within 30 days could result in a default decision issued against Respondent’s license to practice in the State of Colorado.
4. No written answer to the Notice of Charges has been filed by Respondent.

5. The Board's Motion for Entry of Default was mailed by first class mail to Respondent at the above address on April 16, 2019. Respondent did not file a response to the motion.

6. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the above address on May 8, 2019. The Respondent did not file a motion to set aside the Entry of Default.

7. Respondent is deemed to have admitted the allegations of the Notice of Charges, which are incorporated herein as Findings of Fact.

Underlying Facts

8. Respondent is a LPC within the State of Colorado, license number LPC 4358.

9. Respondent was licensed as a LPC on June 20, 2006, and has been so licensed at all times relevant to this proceeding.

10. On October 14, 2018, the Board received a complaint ("Complaint") alleging Respondent had developed an addiction to a controlled substance. The Complaint expressed concern regarding Respondent's ability to safely practice as an LPC.

11. On October 23, 2018, Board staff sent Respondent a copy of the Complaint and requested a response to the allegations contained therein within 30 days.

12. On that same day – October 23, 2018 – Respondent forwarded approximately 15 e-mails to Board staff between the hours of 3:31pm and 8:01pm. The e-mails appeared, for the most part, to be copies of e-mails Respondent had sent to or received from others. The e-mails contained multiple e-mail addresses for Respondent, misspellings, and lacked punctuation. No context for the multitude of e-mails was provided to Board staff.

13. One (1) of the e-mails sent to Board staff on October 23, 2018, appeared to be a response to the Complaint. Therein, Respondent asserted he was a victim of sexual assault, had been drugged, and was currently suffering from a multitude of mental health disorders. Respondent appeared to insinuate he was currently being stalked and his identity had been compromised.

14. On October 25, 2018, Board staff responded to Respondent via e-mail indicating his e-mails had been received and to please contact Board staff.

15. Board staff received no further communication from Respondent.

16. On January 14, 2019, the Board issued an *Order Pursuant to § 12-43-224(2)(d)* ("January 14, 2019, Order"), directing Respondent to contact Peer Assistance Services ("PAS") within three (3) days – or by January 17, 2019 – to schedule a mental status examination ("MSE"). The January 14, 2019, Order also required that the MSE be conducted within 30 days, or by February 13, 2019.

17. On February 15, 2019, PAS contacted Board staff and informed them Respondent had neither contacted PAS to schedule his MSE, nor obtained an MSE.

18. As a result of Respondent's failure to comply with the January 14, 2019, Order, the Board issued an Order of Summary Suspension to Respondent pursuant to §§ 12-43-224(2)(c)(II)(C), C.R.S., on February 15, 2019.

19. Respondent failed to schedule the MSE.

20. Board staff received no further communication from Respondent.

CONCLUSIONS OF LAW

1. Respondent received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over his license to practice as an LPC pursuant to the provisions of the Mental Health Practice Act, Section 12-43-101, *et. seq.*, C.R.S. ("MHPA").

3. By virtue of Respondent's default, the Board is entitled to the relief requested in the Notice of Charges. See Section 24-4-105(2)(b), C.R.S.

4. The deemed allegations constitute violations of law as set forth in the Notice of Charges.

5. Respondent is subject to discipline pursuant to Section 12-43-224(2)(c)(II)(C), C.R.S., because he failed to submit to a mental status examination, as required by Section 12-43-224(2)(d) and (e), C.R.S.

4. Respondent is subject to discipline pursuant to Sections 12-43-223(1)(a)(I) and 12-43-224(2)(d), C.R.S., because he failed to comply with the January 14, 2019 Order by failing to submit to a mental status examination, in violation of Section 12-43-222(1)(b), C.R.S.

INITIAL DECISION

When the Board has proven that a licensee has violated the licensing law, it may deny, revoke, or suspend the licensee's license to practice as a LPC. Section 12-43-223(1)(a)(I), C.R.S. Upon the failure of a licensee to submit to a mental or physical examination, the Board may summarily suspend the licensee's license to practice as a LPC. Sections 12-43-224(2)(c)(II)(C), (d), and (e), C.R.S.

The Board seeks an order upholding the Order of Summary Suspension issued by the Board to Respondent on February 15, 2019, and suspending Respondent's license to practice as a LPC until he submits to the required examination.

Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than suspension of Respondent's license to practice as a LPC until he submits to the required examination is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining his license to practice as an LPC. It is therefore the Initial Decision of the Administrative Law Judge that the Order of Summary Suspension issued by the Board to Respondent on February 15, 2019, is upheld, and Respondent's license to practice as a LPC is suspended until he submits to the required examination.

DONE AND SIGNED this 1st day of July, 2019.

/s/ MICHELLE A. NORCROSS
Supervising Administrative Law Judge